

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #01	CCRB Case #: 201607667	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 09/06/2016 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/6/2018	Precinct: 73
Date/Time CV Reported Tue, 09/06/2016 10:29 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 09/06/2016 10:29 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Carlos Paredes	04127	961068	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Benjamin Chen	07156	960362	073 PCT
2. POM Steven Szymczak	24782	931292	073 PCT
3. POF Brianna Carlo	13238	960326	073 PCT
4. POF Andreea Avram	00283	945371	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Carlos Paredes	Discourtesy: Police Officer Carlos Paredes spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Carlos Paredes	Abuse: Police Officer Carlos Paredes entered and searched § 87(2)(b) in Brooklyn.	B . Exonerated

Case Summary

On September 6, 2016, at approximately 6:00 a.m., § 87(2)(b) called 911 § 87(2)(b) § 87(2)(b) EMTs reportedly responded but left the scene without taking § 87(2)(b) for an evaluation. § 87(2)(b) called 911 again minutes later, and both officers and EMTs responded. An unknown officer reportedly pounded on § 87(2)(b)'s window in order to alert him of their presence. When § 87(2)(b) opened the front door, PO Carlos Paredes of the 73rd Precinct allegedly said, "You are crazy, and you need to come with us" (**Allegation A**). § 87(2)(b) told PO Paredes that he could not enter his apartment. PO Paredes reportedly said, "Yes, I'm coming in," and walked past § 87(2)(b) and into the apartment (**Allegation B**). PO Paredes went into the apartment and was followed by the EMTs. He reportedly yelled at § 87(2)(b) § 87(2)(b) hurrying him out of the apartment with EMTs minutes later. § 87(2)(b) voluntarily entered the ambulance and was transported to § 87(2)(b) § 87(2)(b).

There was no video footage available for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint because § 87(2)(g) [REDACTED]
- A Notice of Claim inquiry was submitted to the Office of the New York City Comptroller on November 2, 2016. Its results will be added to the case file upon receipt [01 Board Review].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Civilian and Officer CCRB Histories

- This is the second CCRB case involving § 87(2)(b) § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- This is the first CCRB case filed against PO Paredes in his one year tenure.

Findings and Recommendations

Allegation A – Discourtesy: Police Officer Carlos Paredes spoke discourteously to § 87(2)

Allegation B – Abuse of Authority: Police Officer Carlos Paredes entered § 87(2)(b) in Brooklyn.

§ 87(2)(b) testified that he awoke between 5:00 a.m. and 6:00 a.m. and did not feel. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) called 911 and explained that he needed help § 87(2)(b)

According to § 87(2)(b) paramedics arrived a short time after the 911 call. He was nervous at that moment, and his heart was racing. EMTs, officers, and firemen were on scene. An EMT yelled at § 87(2)(b) at which point § 87(2)(b) told the EMT to leave. All of the EMTs, officers, and firemen left the scene.

§ 87(2)(b) reported that he phoned 911 a second time about 15 minutes after the paramedics left. § 87(2)(b) He did not remember if he explained his previous interaction with the paramedics to the 911 operator. § 87(2)(b) did not say that he wanted to die or anything to that effect. He lay in his bed as he waited for EMS to respond. Suddenly, § 87(2)(b) heard banging on his window. An unknown officer shouted, "Police! Police! Open the window!" § 87(2)(b) had not previously heard anyone knocking at the door.

Immediately after hearing the banging at his window, § 87(2)(b) went and opened the front door, at which point PO Paredes yelled, "You are crazy, and you need to come with us." PO Paredes reportedly pointed at § 87(2)(b) as he said this. § 87(2)(b) responded by telling PO Paredes that he could not enter his residence and extended his arms toward PO Paredes as he said this. PO Paredes, who was just outside the door, replied, "Yes, I'm coming in." PO Paredes then walked past § 87(2)(b) and into the apartment. PO Paredes reportedly yelled at and hurried § 87(2)(b) along for approximately ten minutes. § 87(2)(b) ultimately left the apartment and entered the ambulance [04 Board Review].

EMT § 87(2)(b) testified that she and her partner, EMT § 87(2)(b) responded to a job involving a patient with § 87(2)(b). Upon arriving on scene, EMT § 87(2)(b) went to § 87(2)(b)'s residence; EMT § 87(2)(b) remained in the ambulance gathering equipment. Approximately one minute later, EMT § 87(2)(b) returned to the ambulance with an FDNY lieutenant, whose identity EMT § 87(2)(b) did not know, and stated that there was an issue with § 87(2)(b). EMT § 87(2)(b) informed EMT § 87(2)(b) that § 87(2)(b) was agitated and acted erratically. She did not remember if EMT § 87(2)(b) informed her of anything else that happened.

EMT § 87(2)(b) pulled their ambulance around the corner as is procedurally appropriate when there are safety concerns at a scene. Approximately four to six officers responded a short time later. She did not know their identities. At some point, EMT Lieutenant § 87(2)(b) arrived on scene and spoke with officers.

According to EMT § 87(2)(b) the officers entered the location while the EMTs waited by the ambulance. As such, she did not see when or how the officers made entry. When the officers exited the building and told the EMTs that the scene was safe, EMT § 87(2)(b) entered the apartment and treated § 87(2)(b). At some point, a female officer informed EMT § 87(2)(b)

that she had spoken to § 87(2)(b) via phone prior to the officers' arrival. She did not specify what § 87(2)(b) had said to her.

While inside the apartment, EMT § 87(2)(b) observed that § 87(2)(b) was agitated, paranoid, verbally combative, and screaming at everyone. When asked if § 87(2)(b) was screaming at anyone in particular, EMT § 87(2)(b) stated that § 87(2)(b) screamed at anyone who had a pulse. She denied remembering any specific statements made by § 87(2)(b).

During her CCRB interview, EMT § 87(2)(b) reviewed the PCR, which she prepared and which noted the following: § 87(2)(a) PHL § 18(6). She did not remember which officer informed her of this. § 87(2)(b) made no statements to EMT § 87(2)(b) which suggested to her that he was suicidal. § 87(2)(b)

EMT § 87(2)(b) also reviewed the list of medications that § 87(2)(b) admitted to taking as per the PCR. § 87(2)(a) PHL § 18(6), § 87(2)(b)

EMT § 87(2)(b) did not remember hearing any officer say, "You're crazy, and you need to come with us." She did not remember hearing any officer call § 87(2)(b) crazy [05 Board Review].

EMT § 87(2)(b) was scheduled for two appointments but missed both without prior notice of cancellation [see IAs].

PO Paredes testified that he received a job involving a non-violent EDP at § 87(2)(b)'s location. He did not remember any other details of the job. While en-route, his recorder and Field Training Officer, PO Avram, called § 87(2)(b) via her Department-issued phone. The phone call lasted several minutes, during which time PO Avram tried to calm § 87(2)(b). PO Paredes did not remember exactly what was said or how the call ended, but PO Avram informed him that § 87(2)(b) had said, "Let me die in peace." Based on this statement, PO Paredes believed that § 87(2)(b) intended to hurt himself. He also suspected that he may be resistant to assistance offered by officers.

Upon arrival at § 87(2)(g), PO Paredes observed EMTs outside of the building. An EMT informed PO Paredes that EMTs had attempted to enter § 87(2)(b)'s apartment several times, but that § 87(2)(b) had refused to let them in. The EMTs did not provide PO Paredes with any details they received in their job, and he did not remember if they stated that they were aiming to bring § 87(2)(b) to the hospital. Officers from the 73rd Precinct's Response Auto One, identified by the investigation as PO Steven Szymczak, PO Benjamin Chen, and PO Brianna Carlo, also arrived on scene.

According to PO Paredes, two officers approached the side entrance of the house, which appeared to be a two story building. One of those officers was PO Avram, and the other was one of the officers from Response Auto One. PO Paredes did not knock at the window and did not remember any other officer or EMT doing so. § 87(2)(b) responded after several minutes of knocking at the exterior glass door, which served as the main entrance to the building. § 87(2)(b) opened only the interior door to his apartment and spoke to the officers through the glass door. He stated that he did not want anyone to help him. PO Paredes did not remember § 87(2)(b) saying anything which led him to believe that he was suicidal or in any way dangerous.

PO Paredes stated that officers spoke with § 87(2)(b) and told him that he needed to be evaluated by EMS. Eventually, § 87(2)(b) opened the glass door and told the officers that there were dogs within his apartment. PO Paredes stepped over the threshold of the glass door, which was the main entrance to the building and not the entrance to § 87(2)(b)'s apartment, and remained there so that the dogs would not get out. § 87(2)(b) then gave the officers verbal consent to enter his apartment. § 87(2)(b) was the first to enter the apartment and never blocked the doorway. PO Paredes did not remember which officer entered the apartment first. PO Paredes remained outside § 87(2)(b)'s apartment throughout the incident. He did not remember if § 87(2)(b) yelled, or if he made any statements amounting to revocation of consent.

PO Paredes denied telling § 87(2)(b) "You're crazy, and you need to come with us." He also denied that any officer called § 87(2)(b) crazy or that § 87(2)(b) complained of such a statement [06 Board Review].

PO Avram revealed that the job details mentioned that § 87(2)(b). Based on this information, PO Avram was concerned that § 87(2)(b) may be suicidal.

PO Avram testified that she called § 87(2)(b) because the job was in Sector A of the 73rd Precinct, outside of her assigned sector. § 87(2)(b) answered the phone, informed PO Avram that EMS had already been to his home and that he did not need to go to the hospital. § 87(2)(b) asked PO Avram to let him die in peace and stated that he wanted to die alone. PO Avram told § 87(2)(b) that they were en route and would arrive shortly. § 87(2)(b) reportedly terminated the call and did not answer subsequent calls.

PO Avram § 87(2)(g) the EMTs being on the sidewalk and reporting a previous negative interaction with § 87(2)(b) in which he refused medical attention. She added that the EMTs told her that § 87(2)(b) had to go to the hospital § 87(2)(b) and that they were also afraid for their safety.

PO Avram § 87(2)(g) added that § 87(2)(b) spoke in a raised voice and screamed as he spoke with officers and EMTs through the door. PO Avram reminded § 87(2)(b) that he had mentioned a desire to die, and she told him that he had to go to a hospital. § 87(2)(b) said no, § 87(2)(b) and stated again that he did not wish to go to a hospital. PO Avram told § 87(2)(b) that it was imperative that he go to a hospital. At that point, § 87(2)(b) agreed and asked for time to get changed.

According to PO Avram, § 87(2)(b) let the officers into the apartment by providing verbal consent. Specifically, he stated something to the effect of, “Let’s go in.” His interior door was already open. § 87(2)(b) was the first to enter his apartment; officers, including PO Avram, followed. No additional conversation took place outside of the apartment. Like PO Paredes, PO Avram denied that any officer called § 87(2)(b) crazy. § 87(2)(b) did not complain that any officer had done so. § 87(2)(b) did not tell officers that they could not enter his apartment, nor did he rescind consent for them to be inside. At some point, he asked the officers not to let his dogs out. PO Paredes remained at the apartment’s door to ensure that the dogs would not get out [07 Board Review].

PO Chen, who prepared the AIDED report for this incident, had a poor memory of the events. He did not remember who the other officers at the scene were, or how officers gained entry to § 87(2)(b)s apartment. However, he denied that § 87(2)(b) took any actions to prevent officers from entering. He also denied that any officer called § 87(2)(b) crazy [08 Board Review].

PO Szymczak testified that § 87(2)(b) opened the door after EMTs knocked at the door for an unspecified amount of time, and that he appeared shaken. According to PO Szymczak, EMTs told § 87(2)(b) that they were there because he had called 911, and they asked for permission to come inside. § 87(2)(b) said yes, at which time the EMTs entered the apartment. Officers followed. PO Szymczak denied that any officer called § 87(2)(b) crazy or that § 87(2)(b) ever refused the officers’ entry. § 87(2)(b) made no statements and took no actions amounting to the revocation of consent [09 Board Review].

The Event Information for this incident stated that a § 87(2)(b) male was having chest pains, § 87(2)(b) and that a follow up call was made by the patient, who indicated that EMS would not take him. The Event Information also indicated that § 87(2)(b) was not cooperative, as per the assigned EMS unit [10 Board Review]. The AIDED report, which was prepared by PO Chen, stated the following: § 87(2)(b) [11 Board Review].

§ 87(2)(g) It is therefore recommended that **allegation A** be closed as **unsubstantiated**.

Patrol Guide procedure 216-05 states that when a member of the service reasonably believes that a person is mentally ill or emotionally disturbed, he or she must take the individual into protective custody in order to prevent injury or harm to the subject or others [13 Board Review]. Officers may enter a home without a warrant under the emergency doctrine when there is a substantial threat or imminent danger to life, health, or property. People v. Rogers, 184 Misc. 2d 419 (2000) [12 Board Review].

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **allegation B** be closed as **exonerated**.

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date